BOONE COUNTY PLANNING COMMISSION
BOONE COUNTY ADMINISTRATION BUILDING
BOONE COUNTY FISCAL COURTROOM
PUBLIC HEARINGS
SEPTEMBER 2, 2026
7:30 P.M.

Chairman Rolfsen opened the Public Hearing at 8:18 p.m. and welcomed the audience to the Planning Commission's September 2, 2026 Public Hearings.

COMMISSION MEMBERS PRESENT:

Mr. Randy Bessler
Mrs. Kathy Clark
Mrs. Pamela Goetting
Ms. Corrin Gulick, Vice Chairwoman
Mr. Steve Harper, Temporary Presiding Officer
Mr. David Hincks
Mr. Thomas Judd
Mr. Rick Lunnemann
Mr. Joshua Nathan
Mr. Charlie Rolfsen, Chairman
Mr. Bob Schwenke
Mrs. Jackie Steele, Secretary/Treasurer
Mr. Tom Szurlinski

COMMISSION MEMBERS NOT PRESENT:

Mrs. Janet Kegley
Mr. Eric Richardson

LEGAL COUNSEL PRESENT:

Mr. Dale Wilson

STAFF MEMBERS PRESENT:

Mr. Michael Schwartz, Interim Executive Director/Director, Zoning Services
Mr. Steve Lilly, PLS, GISP, Planner
Ms. Lauren Elliott, Planner

Chairman Rolfsen introduced the first item on the agenda:

ZONING MAP AMENDMENT, Lauren Elliott, Staff

1. Request of **Marion Woolum (applicant/owner)** for a Zoning Map Amendment from Rural Suburban Estates (RSE) to Agricultural Estate (A-2) for an approximate 12.9-acre area located at 3563 Petersburg Road, Boone County, Kentucky. The

request is for a Zoning Map Amendment to allow the creation of three additional single-family residential lots. **(Jurisdiction: Boone County)**

Staff member, Lauren Elliott, noted that the staff report is included by reference. The approximate 12.9-acre area is located along the south side of Petersburg Road, immediately across from Sunchase Boulevard. The site has approximately two hundred and five (205) feet of frontage along Petersburg Road. The site is currently occupied by a barn and several small, detached outbuildings. The full site history is included in the staff report, but notably, this site went through the Conditional Use Permit process in 2022 to use the existing barn as a reception hall. That permit was denied by the Boone County Board of Adjustment. Access to the site is from a single driveway curb cut onto Petersburg Road. The site is currently zoned Rural Suburban Estates (RSE). The properties on all sides of the subject site are single family residential, zoned RSE. Part of the property to the west is also zoned Agricultural Estates (A-2). Topographically, the site is relatively flat, with its highest point being in the western portion of the site, where the previously existing single-family dwelling was located. The 2045 Future Land Use Map designates the site in question as “Suburban Density Residential”, which is described as single-family housing of up to four units per acre. Within the Our Boone County Plan 2045 Hebron Characteristic Area, the plan states: Subdivision activity should continue around Bullittsville and along Bullittsville Road, with High Density Suburban Residential on the north side of Petersburg Road near the proposed Graves Road Interchange; and the plan recommends roadway improvements to Petersburg Road, but specifically notes that those improvements should not extend farther west than the warehouses of Airpark West, which this site sits further west than. The submitted concept plan indicates the creation of three additional buildable lots, approximately 2.3 acres each and the creation of a private street to service those new lots. The current RSE zoning would allow this proposed density (it would even allow more density), but it does not allow private streets.

Chairman Rolfsen asked if the applicant was present and wanted to proceed with their presentation?

Mr. Marion Woolum stated that he had the site surveyed, thinking that the current zoning would allow him to subdivide the property and provide for a private street. The Planning Commission staff suggested that if he wanted to proceed with a private street, he would need to apply for a Zoning Map Amendment.

Chairman Rolfsen asked how access would be provided to the last lot if the private street ends at the second lot. Mr. Woolum replied that there would be a driveway with an easement.

Chairman Rolfsen asked if the lots would be for sale or for family members. Mr. Woolum replied that they are intended to be for family members.

Mr. Nathan asked what will happen with the triangular area to the east of the proposed lots. Mr. Woolum replied that that is not his property. He stated that the proposed houses will be built closer to the new private street, and the woods will remain untouched.

Chairman Rolfsen asked if anyone in the audience would like to speak in favor or against the request or had any questions?

Mr. Gary Owens stated that he owns property to the west of the site. He stated that Mr. Woolum renovated the existing barn and applied for a Conditional use Permit for an event center. Even though he was denied, he has continued to use the barn for events, weddings, etc. and that people drive up his driveway looking for the event center. If this application is approved, is it just for three single-family homes, can the three lots be rental property or Air BnBs? Will there be any more events at the barn? He stated that his main opposition is the continuing use of the barn as an event center. There is an existing sign for the event center. If the proposal is going to be approved, the sign should be removed.

Mr. Jefferson Banks stated that he is adjacent to the site and his concern is that that the trees along the perimeter of the site will not be removed.

Mr. Woolum stated that the intent is to not touch the perimeter trees. The barn is not being used as an event center. The barn is not being rented out. The barn is used for family events and church activities. When asked, he replied that he has no problem removing the sign.

Mr. Owens stated that the barn has been renovated to include restrooms and electricity and that people have asked him for directions to the place that is rented out for parties.

Seeing no one else from the public who wished to speak, Chairman Rolfsen opened the discussion up to the commissioners.

Seeing no further questions or comments, Chairman Rolfsen announced that the Committee Meeting for this item will be on September 16, 2026, at 5:00 P.M. This item will be on the Agenda for the Business Meeting on October 7, 2026, at 7:00 p.m. in the Fiscal Courtroom. Chairman Rolfsen closed the Public Hearing at 8:36 p.m.

APPROVED:

Charlie Rolfsen
Chairman

Attest:

Michael Schwartz
Interim Executive Director

COMMISSION MEMBERS PRESENT:

Mr. Randy Bessler
Mrs. Kathy Clark
Mrs. Pamela Goetting
Ms. Corrin Gulick, Vice Chairwoman
Mr. Steve Harper, Temporary Presiding Officer
Mr. David Hincks
Mr. Thomas Judd
Mr. Rick Lunnemann
Mr. Joshua Nathan
Mr. Charlie Rolfsen, Chairman
Mr. Bob Schwenke
Mrs. Jackie Steele, Secretary/Treasurer
Mr. Tom Szurlinski

COMMISSION MEMBERS NOT PRESENT:
Mrs. Janet Kegley
Mr. Eric Richardson

LEGAL COUNSEL PRESENT:

Mr. Dale Wilson

STAFF MEMBERS PRESENT:

Mr. Michael Schwartz, Interim Executive Director/Director, Zoning Services
Mr. Steve Lilly, PLS, GISP, Planner
Ms. Lauren Elliott, Planner

Chairman Rolfsen introduced the second item on the agenda at 8:36 p.m.:

ZONING MAP AMENDMENT/CONDITIONAL USE PERMIT, Steve Lilly, Staff

2. Request of **Christian Foster (applicant)** for **Immanuel Baptist Church of Florence Inc. (owner)** for: (1) a Zoning Map Amendment from Suburban Residential One (SR-1) to Public Facilities (PF); and (2) a Conditional Use Permit for an Electronic Message Board/Screen, for an approximate 7.9-acre area located at 1440 Boone Aire Drive, Boone County, Kentucky. The request is for a Zoning Map Amendment and Conditional Use Permit to allow the retention of the existing church building and associated services/functions, the construction of a 30' x 50' x 12' garage building, and the installation of an electronic sign. **(Jurisdiction: Boone County)**

Staff member, Steve Lilly, noted that the staff report is included by reference. The site contains a total of approximately 7.9 acres and is located at the intersection of Boone Aire Road and KY 18, across from Centennial Circle. The site has approximately 1,200 feet of frontage along KY18 and approximately 1,000 feet of frontage along Boone Aire Road. The site is currently occupied by an approximate 20,000 square foot church building, parking lot, a playground, accessory structures, and a recreation field. Access to the site is currently from two curb cuts on Boone Aire Road. Topographically, the high point of the site is near the northwest corner of the property, having an elevation of 882. From that point, the site falls at an approximate 2.2% slope in a southeasterly direction. The southeastern corner of the site slopes down to a drainage swale at approximately 14.6%. Applicable zoning regulations can be found on pages two and three of the staff report. Applicable portions of the Comprehensive Plan can be found on pages three through five of the staff report. An inter-departmental email was sent to the Boone County Building Department, Boone County Public Works, Boone County Water District, Burlington Fire Department, KYTC, and SD-1 requesting comments pertaining to the request. Linzy Brefeld, KYTC, replied that the sign will need to be outside of KYTC right-of-way. All other responses replied that they had no comments.

Chairman Rolfsen asked if the applicant was present and wanted to proceed with their presentation?

Mr. Christian Foster stated that the proposed garage is for the secure storage of items and the proposed sign is the same sign that they have at their current location. They will meet all the zoning requirements. The frame of the existing sign was installed by the previous owner and will be removed.

Mr. Doug Foster provided a brief history of the church and stated that while they removed some bushes, they replaced them with more bushes than were removed.

Chairman Rolfsen asked what they were going to do with their old facility. Mr. Doug Foster replied that they sold it to another church.

Chairman Rolfsen asked if anyone in the audience would like to speak in favor or against the request or had any questions?

Seeing no one else from the public who wished to speak, Chairman Rolfsen opened the discussion up to the Commissioners.

Seeing no further questions or comments, Chairman Rolfsen announced that the Committee Meeting for this item will be on September 16, 2026, at 5:00 P.M. This item will be on the Agenda for the Business Meeting on October 7, 2026, at 7:00 p.m. in the Fiscal Courtroom. Chairman Rolfsen closed the Public Hearing at 8:48 p.m.

APPROVED:

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Charlie Rolfsen
Chairman

Attest:

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Michael Schwartz
Interim Executive Director

COMMISSION MEMBERS PRESENT:

Mr. Randy Bessler
Mrs. Kathy Clark
Mrs. Pamela Goetting
Ms. Corrin Gulick, Vice Chairwoman
Mr. Steve Harper, Temporary Presiding Officer
Mr. David Hincks
Mr. Thomas Judd
Mr. Rick Lunnemann
Mr. Joshua Nathan
Mr. Charlie Rolfsen, Chairman
Mr. Bob Schwenke
Mrs. Jackie Steele, Secretary/Treasurer
Mr. Tom Szurlinski

COMMISSION MEMBERS NOT PRESENT:
Mrs. Janet Kegley
Mr. Eric Richardson

LEGAL COUNSEL PRESENT:

Mr. Dale Wilson

STAFF MEMBERS PRESENT:

Mr. Michael Schwartz, Interim Executive Director/Director, Zoning Services
Mr. Steve Lilly, PLS, GISP, Planner
Ms. Lauren Elliott, Planner

Chairman Rolfsen introduced the third item on the agenda at 8:48 p.m.:

ZONING MAP AMENDMENT, Michael Schwartz, Staff

3. Request of **Steve Berling (applicant)** for **Arlinghaus I LLC (owner)** for a Zoning Map Amendment from Rural Suburban estates/Union Town Overlay (RSE/UTO) and Union Neighborhood Office (UNO) to Union Commercial (UC) for an approximate 3.5 acre area located at the southwest corner of the intersection of Old Union Road with US 42, having a Parcel Identification Number (PIDN) of 063.00-00-001.00, Union, Kentucky. The request is for a Zoning Map Amendment to allow the construction of a 6,000 square foot funeral home and a 3,500 square foot bank. **(Jurisdiction: Union)**

Staff member, Michael Schwartz, referred to his PowerPoint presentation (see staff report). The approximate 3.5-acre area is located at the southwest corner of the intersection of Old Union Road with US 42. The site has approximately 264 feet of frontage along Old Union Road and 570 feet of frontage along US 42. The site is currently vacant. The area immediately to the west of the site is the Villas of Fowler Creek. The site is currently zoned RSE/UTO. Page two of the staff report provides the findings necessary to grant a Zoning Map Amendment and those portions of the Zoning Regulations that are relevant to this issue. The site slopes downward, north to south, from an elevation of 852 to 826 for approximately one-third of the length of the site. From there, the site slopes upward from an elevation of 826 to 858 for another third of the length of the site. Then, the site slopes downward from an elevation of 858 to 850 to the south property line of the site. Most of the site is identified for Urban Density Residential uses, which is described as housing over eight units per acre. A small portion of the site is identified as Rural Lands. Old Union Road is a city-owned local street providing for two-way traffic within two driving lanes, transitioning to three eastbound lanes and one westbound lane at the intersection of US 42. There are sidewalks along both sides of the roadway. Pages two through four of the staff report include those portions of the Comprehensive Plan that are pertinent to the submitted request. Pages four and five of the staff report include a list of transportation projects that are identified in the Boone County Transportation Plan. As it pertains to the Union Town Plan, the area along US 42 is identified as Green Area. The remainder of the site is identified as Residential at 10 dwelling units per acre. The plan also provides for a minimum 100-foot setback from US 42. The submitted Concept Development Plan indicates a 6,000 square foot funeral home, a 3,500 square foot bank, and provision for 104 off-street parking spaces. Access from a new curb cut onto Old Union Road and the restriping of Old Union Road provide for an exclusive left-turn lane at the new curb cut. Regulatory comments can be found on pages five and six of the staff report. Staff comments and comments from outside agencies can be found on page six of the staff report.

Chairman Rolfsen asked if the applicant was present and wanted to proceed with their presentation?

Mr. Steve Berling passed out a revised Concept Development Plan. He stated that the proposed bank will no longer have a drive through, except for the ATM machine. The proposed buyer of the site is Mr. Jeff Hay, the owner of the proposed Stith Funeral Home. While the proposed development does not meet the 100-foot setback, discussions between the buyer and the City of Union have indicated that the city will not hold up the proposal due to that deficiency. All other noted deficiencies can be dealt with. Is there a need for a bus stop when there is no bus line on Old Union Road? The proposed uses do not generate traffic during normal AM and PM peak hours. The Villas of Fowler Creek would prefer a solid fence, rather than landscape material, to block the noise that comes from traffic on US 42.

Faith Constance, Chase Bank, stated that there will be one drive-up ATM, which will be attached to the building. The proposed bank will be very low intensity with daytime use only.

Chairman Rolfsen asked if anyone in the audience would like to speak in favor or against the request or had any questions?

Ms. Karen Brimencamp stated that she lives next to the site. She asked what kind of buffer there will be and how drainage will be handled.

Mr. Berling stated that a detention pond will be constructed between the two buildings and all water will flow from that detention facility away from the Villas of Fowler Creek. The bank will be pretty visible from US 42, but the funeral home will sit lower than US 42.

Mr. TJ Schutte stated that he had met with the Villas of Fowler Creek, and they want a decorative fence to block the noise from US 42.

Ms. Florence Chesser stated that she abuts the site and her concern is the maintenance of the detention facility and the devaluing of her property.

Mr. Lunnemann asked if the funeral home would include a crematory. Mr. Hay replied 'no.'

Mr. Lunnemann asked who would be responsible for the maintenance of the detention pond. Mr. Berling replied that it will be private and maintained by the two property owners.

Mr. Nathan asked the applicant to address one of the statutory requirements for a Zoning Map Amendment. Mr. Berling replied that given the site configuration, topography, location, and traffic issues, the existing zoning is inappropriate, and the proposed zoning is appropriate.

Seeing no one else from the public who wished to speak, Chairman Rolfsen opened the discussion up to the Commissioners. There were no questions or comments.

Seeing no further questions or comments from the audience, Chairman Rolfsen announced that the Committee Meeting for this item will be on September 16, 2026, at 5:00 P.M. This item will be on the Agenda for the Business Meeting on October 7, 2026, at 7:00 p.m. in the Fiscal Courtroom. Chairman Rolfsen closed the Public Hearing at 9:18 p.m.

APPROVED:

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Charlie Rolfsen
Chairman

Attest:

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Michael Schwartz
Interim Executive Director